

Court No. - 3

Case :- WRIT - C No. - 7623 of 2022

Petitioner :- Rajghat Education Centre Krishna Murti Foundation India

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Ajay Kumar Singh, Ashish Kumar Singh, Tejas Singh

Counsel for Respondent :- Adarsh Bhushan

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Passed over on the request of learned counsel for the petitioner.

Put up as a fresh case on 19.4.2022.

Order Date :- 12.4.2022

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Counsel for Respondent :- Adarsh Bhushan

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsels for the parties.

This writ petition has been filed, inter alia, praying for the following relief:

" I. Issue an appropriate writ, order or direction in the nature of certiorari, calling for record relating to Account/Electricity Connection no. 0508481000 of petitioner's institution and upon production of same, quash impugned demand of Arrear amounts, LPSC (Late Payment Surcharge) and previous LPSC (Late Payment Surcharge) raised through bills dated 19.1.2022, 8.12.2021 and 24.11.2021 (Annexur nos. 1, 2 and 3 respectively) issued by Executive Engineer-UEDD VIII, Purvanchal Vidyut Vitaran Nigam Limited (PUVVNL), Varanasi."

Sri Adarsh Bhushan, learned counsel for the respondent No. 2 / Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No. 2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 17.5.2022

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